

SUPREME COURT OF THE STATE OF NEW YORK

FOR THE

COUNTY OF KINGS, CIVIL PART

_____	)	COMPLAINT
DARRELL RAMOS, and VICTORIA	)	
RAMOS,	)	
	)	
Plaintiff,	)	
	)	INDEX NO.: _____
-Against-	)	
	)	
THE CITY OF NEW YORK, and NEW	)	
YORK CITY POLICE DEPARTMENT,	)	
CAPTAIN OMAR BIRCHWOOD, 71 st	)	
PRECINCT OF THE NEX YORK CITY	)	
POLICE DEPARTMENT, JOHN DOE	)	
POLICE OFFICERS 1 THROUGH 10,	)	
	)	
Defendants.	)	

Plaintiff, DARRELL RAMOS by and through counsel, CIVIL RIGHTS CONSORTIUM,
respectfully allege the following:

PRELIMINARY STATEMENT

The Plaintiff brings an action against the Defendants for malicious prosecution and
abuse of process.

JURISDICTION

(1) This action is brought pursuant to 42 U.S.C. § 1983, for purposes of unreasonably
seizing the Plaintiff, maliciously and abusively commencing process against the Plaintiff.
Additionally, this action is brought pursuant to 42 U.S.C. § 1983, for discrimination in arresting,
maliciously and abusively commencing process.

VENUE

(2) Pursuant to Civil Practice Law and Rules §§ 504(3) and 503(a) where the Plaintiff resides in Kings County, and where the material factual events have taken place in Kings County, this action is being commenced in Kings County.

JURY DEMAND

(3) Plaintiff respectfully demands a trial by a jury of all issues herein pursuant to Civil Practice Law and Rules § 4101(1) and (3), including whether the Defendants maliciously, abusively, and discriminatorily seized and commenced process against the Plaintiff.

PARTIES

(4) Darrell Ramos is the Kings County Resident who was unlawfully arrested and maliciously prosecuted.

(5) Victoria Ramos is the mother of the Plaintiff Darrell Ramos whose home was unlawfully invaded by the Defendants.

(6) Defendant Captain Omar Birchwood of the 71st Precinct of the New York City Police Department, is one of the Defendants, arresting Officers that arrested and commenced process as described herein.

(7) Defendants 1 through 10 are arresting Officers that arrested and commenced process as described herein.

(8) The Defendant City of New York was and is a political subdivision of the State of New York.

(9) The Defendant New York City Police Department is the municipal agency that discriminatorily, maliciously, and abusively arrested and commenced process against the Plaintiff.

(10) Defendant 71st Precinct is the precinct of the police department that effected the Plaintiff's arrest and malicious prosecution.

FACTUAL BACKGROUND & ALLEGATIONS

(11) Plaintiff Darrell Ramos, a resident of Brooklyn, County of Kings, City and State of New York, was subjected to an unlawful seizure and resulting arrest and malicious prosecution, thereby suffering damages, arising from the Precinct constant harassment, and targeting of Claimant Darrell Ramos.

(12) On or about April 6, 2023, while at the home of Victoria Ramos, Plaintiff's mother, located at 1853 Fulton Street, Apartment 5E, Brooklyn, New York 11233 ("the Home"), Plaintiff Darrell Ramos, one suffering from the disability of alcoholism, was have a tough day with his disability.

(13) Members of the 71st Precinct were summoned to the Home to conduct a wellness check of Plaintiff Darrell Ramos.

(14) However, the said uniform staff, acting without probably cause, turned the wellness check into another opportunity to retaliate against a sleeping Mr. Darrell Ramos, and arrest him, without basis.

(15) On that baseless mission, the uniform staff violated Plaintiff Victoria Ramos' rights, invading her home, and arresting a sleeping Darrell Ramos on a series of baseless charges.

(16) As a result of that baseless arrest, Mr. Ramos was illegally seized and held in custody for many hours.

(17) The false arrest, false prosecution, and malicious prosecution gave rise to Mr. Ramos' prosecution in *People of the State of New York v. Darrell Ramos*, Index No. 012044-2023KN (Kings Co. Cr. Ct.).

(18) The Defendants' baseless arrest comes on the heels of two (2) previous false arrests and malicious prosecution, over which Respondents' have been sued in *Ramos v. City of New York*, 508071/2019 (Kings Co. Sup. Ct.), where Mr. Ramos was exonerated after two different trials in false arrests, false imprisonment, and malicious prosecutions in two different criminal prosecutions.

(19) On October 23, 2023, in *People v. Ramos*, Index No. 012044-2023KN (Kings Co. Cr. Ct.), the Kings County District Attorney's Office dropped the case admitting that the charges for which Mr. Ramos' had been arrested and charged, could not be proven.

(20) Therefore, in *People v. Ramos*, Index No. 012044-2023KN (Kings Co. Cr. Ct.), the Court dismissed the case.

(21) At the time in question, the Defendants, and uniform staff of the Defendant Precinct, acting without probable cause, knowingly and falsely initiated Plaintiff Darrell Ramos' unlawful arrest and imprisonment.

(22) In an attempt to cover up the absence of probable cause uniform staff of the Defendant Precinct knowingly provided false information in support of their actions, including falsely claiming that the Plaintiff Darrell Ramos criminally possessed a firearm.

(23) Those deliberately false statements were not only for purposes of covering up the lack of probable cause, but also for purposes of inducing the State to prosecute the Plaintiff Darrell Ramos.

CAUSES OF ACTION**FIRST CAUSE OF ACTION**

Plaintiff brings a claim against the Defendants pursuant to 42 U.S.C. § 1983, on the basis that the Defendants maliciously prosecuted Mr. Ramos, causing Mr. Ramos emotional distress.

(24) Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “23” above.

(25) The Defendant commenced or continued a criminal proceeding against the Plaintiff.

(26) On October 23, 2023, that proceeding was terminated in the Plaintiff’s favor on the basis that the People could not prove the charges beyond a reasonable doubt.

(27) There was no probable cause for the criminal proceedings.

(28) The Defendants, in arresting the Plaintiff and in charging the Plaintiff acted maliciously.

(29) The Defendants malicious prosecution has caused the Plaintiff emotional distress.

SECOND CAUSE OF ACTION

Plaintiff brings a claim against the Defendants pursuant to 42 U.S.C. § 1983, on the basis that the Defendants falsely arrested and imprisoned Mr. Ramos, causing Mr. Ramos emotional distress.

(30) Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “29” above.

(31) The Defendants, intending to confine the Plaintiff, arrested the Plaintiff, and did take the Plaintiff into custody and detained the Plaintiff in custody

for approximately 24 hours, more or less.

(32) The Plaintiff was conscious of her confinement.

(33) The Plaintiff did not consent to that confinement.

(34) The Defendants' confinement of the Plaintiff was not otherwise privileged.

(35) The Defendants' unlawful confinement of the Plaintiff caused the Plaintiff emotional distress.

THIRD CAUSE OF ACTION

Plaintiff brings a claim against the Defendants pursuant to 42 U.S.C. § 1983, on the basis that the Defendants maliciously abused process, causing Mr. Ramos emotional distress.

(36) Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs "1" through "35" above.

(37) The Defendants commenced regularly issued criminal process against the Plaintiff.

(38) In commencing regularly issued criminal process against the Plaintiff, the Defendants, intended to do harm without excuse or justification.

(39) The Defendants' use of the regularly issued criminal process was in a perverted manner to obtain a collateral objective.

FOURTH CAUSE OF ACTION

Plaintiff Victoria Ramos brings a claim against the Defendants pursuant to 42 U.S.C. § 1983, for violating the Plaintiff's property rights.

(40) Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs "1" through "39" above.

(41) Plaintiff's property rights were violated where the Defendants unlawfully entered the Plaintiff's home.

(42) Plaintiff did not consent to the Defendants invasion of her home.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests relief and judgment, as follows:

(a) Awarding compensatory damages and punitive damages, the latter damages to individual defendants who meet the underlying standards for imposition of such damages, of \$1,500,000 after a trial;

(b) Awarding extraordinary, equitable, and/or injunctive relief as permitted by law, equity, and the state law, including moving expenses to Plaintiff;

(c) Awarding all the Plaintiff reasonable costs and expenses incurred in this action, including counsel fees and expert fees;

(d) Such other and further relief as this Court may deem just and proper.

Dated: Woodhaven, New York,
April 1, 2024

CIVIL RIGHTS CONSORTIUM.
ATTORNEYS FOR THE PLAINTIFF

BY: E. Dubois Raynor, Jr.
E. Dubois Raynor, Esq.
Managing Attorney
89-07 Jamaica Avenue
Woodhaven, New York 11421
(855) 246-2776